

PREAMBLE

We, the people of South Africa, recognise the injustices of our past; honour those who suffered for justice an

We therefore, through our freely elected representatives, adopt this Constitution as the supreme law of the Re

- ? Heal the divisions of the past and establish a society based on democratic values, social justice and fundam
- ? Lay the foundations for a democratic and open society in which government is based on the will of the people
- ? Improve the quality of life of all citizens and free the potential of each person; and
- ? Build a united and democratic South Africa able to take its rightful place as a sovereign state in the famil

CHAPTER 1 ? FOUNDING PROVISIONS

1. Republic of South Africa

The Republic of South Africa is one, sovereign, democratic state founded on the following values:

- (a) Human dignity, the achievement of equality and the advancement of human rights and freedoms.
- (b) Non-racialism and non-sexism.
- (c) Supremacy of the constitution and the rule of law.
- (d) Universal adult suffrage, a national common voters roll, regular elections and a multi-party system of d

2. Supremacy of Constitution

This Constitution is the supreme law of the Republic; law or conduct inconsistent with it is invalid, and the

CHAPTER 2 ? BILL OF RIGHTS (selected)

7. Rights

- (1) This Bill of Rights is a cornerstone of democracy in South Africa. It enshrines the rights of all people

9. Equality

- (1) Everyone is equal before the law and has the right to equal protection and benefit of the law.
- (3) The state may not unfairly discriminate directly or indirectly against anyone on one or more grounds, in

10. Human dignity

Everyone has inherent dignity and the right to have their dignity respected and protected.

12. Freedom and security of the person

- (1) Everyone has the right to freedom and security of the person, which includes the right?
 - (a) not to be deprived of freedom arbitrarily or without just cause;
 - (b) not to be detained without trial;
 - (c) to be free from all forms of violence from either public or private sources;
 - (d) not to be tortured in any way; and
 - (e) not to be treated or punished in a cruel, inhuman or degrading way.

25. Property

(1) No one may be deprived of property except in terms of law of general application, and no law may permit

26. Housing

(1) Everyone has the right to have access to adequate housing.

(2) The state must take reasonable legislative and other measures, within its available resources, to achieve

(3) No one may be evicted from their home, or have their home demolished, without an order of court made aft

33. Just administrative action

(1) Everyone has the right to administrative action that is lawful, reasonable and procedurally fair.

34. Access to courts

Everyone has the right to have any dispute that can be resolved by the application of law decided in a fair pu

36. Limitation of rights

(1) The rights in the Bill of Rights may be limited only in terms of law of general application to the exten

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